

DoorDash Marketing Services Agreement

DoorDash Merchants (US)

This DoorDash Marketing Services Agreement (the “**Marketing Terms**”), together with the [DoorDash Merchant Terms of Service](#) (or the terms at a successor URL) (the “**Main Agreement**”) which is incorporated by reference, govern your use of the DoorDash marketing services that DoorDash makes available to you through the account(s) (“**Accounts**”) we provide to you in connection with these terms (these services, “**Marketing Services**”), for example DoorDash Ads or Promotions. Any capitalized terms used but not defined in these Marketing Terms will have the meanings given to them in the Main Agreement. The Marketing Services are DoorDash Products as defined in the Main Agreement. You agree to these Marketing Terms by accepting them or executing another agreement that references them.

ARBITRATION NOTICE: You are bound by any [arbitration](#) agreement set forth in the Main Agreement. Unless you opt out of the arbitration agreement: (i) you will only be permitted to pursue claims and seek relief against us on an individual basis, not as a plaintiff or class member in any class or representative action or proceeding; and (ii) you are waiving your right to seek relief in a court of law and to have a jury trial on your claims. The arbitration agreement could affect your right to participate in pending proposed class action litigation.

1. MARKETING SERVICES.

- a. **Campaigns.** When you use your Account to create a Marketing Service campaign (“**Campaign**”), you will create or select the content (“**Marketing Content**”) and any specifications available for that Campaign type (e.g. bids, targeting, promotion types or discounts, budget, dates) (“**Specifications**”). You authorize DoorDash to: (i) display the Marketing Content in connection with your Campaigns on (a) DoorDash applications, websites, and other properties (“**DoorDash Properties**”) and (b) third-party online and in-store properties (“**Partner Properties**” and together with DoorDash Properties, “**Properties**”); and (ii) if applicable, create or select the Marketing Content and Specifications, including through automated tools (e.g. to create a promotional discount Campaign on your behalf). You are responsible for all authorized use of your Account(s).
- b. For Marketing Content displayed on Partner Properties, DoorDash is the buyer of record and will use DoorDash accounts to purchase advertising inventory on Partner Properties.
- c. **Marketing Content.** Marketing Content is Merchant Content as defined in the Main Agreement. Without limiting the license to Marketing Content that you grant to DoorDash in the Main Agreement, You hereby grant DoorDash all necessary rights to use and display the Marketing Content in connection with your use of the Marketing Service. All Marketing Content must comply with the policies made available by DoorDash to Merchant from time to time, including the [Advertising and Promotions Policies](#) (or the policies at a successor URL)(“**Policies**”). DoorDash may reject or remove Marketing Content at any time for any or no reason, including for violating Policies. DoorDash may reformat, resize, or otherwise modify Marketing Content to ensure Campaign delivery, to comply with Policies, or to correct information that DoorDash reasonably believes is inaccurate, deceptive, or violates applicable law.
- d. **Delivery.** DoorDash will, in its sole discretion:
 - i. select Properties, allocate campaign budget, set bids, and make other campaign-related decisions to fulfill the Campaign.
 - ii. determine the size, placement, and positioning of Marketing Content delivered in connection with a Campaign. DoorDash is responsible for fulfilment of your campaign, including the placement of Marketing Content in selected Properties. DoorDash is not responsible for any

fraudulent activity on Properties or any technological issues that may affect Fees or Campaign performance.

- e. **Reporting.** We may provide you with information related to or generated in connection with your use of Marketing Services (“**Marketing Services Data**”). Marketing Services Data is DoorDash Data under the Main Agreement. You may use Marketing Services Data solely to plan, manage, and evaluate your Campaigns through an Account, and for no other purpose. You may not directly or indirectly associate Marketing Services Data with Personal Information. You will not (a) collect Personal Information from the Marketing Services (including through tags or other tracking technologies) or (b) except as intended by a Marketing Service feature, share Personal Information with DoorDash.
- f. **Service Testing & Modification.** DoorDash may modify, pause, or cancel all or any part of the Marketing Services at any time. DoorDash may test new features from time to time, which you acknowledge may affect Campaign performance and the display of Marketing Content.
- g. **Study; Service Marketing.** DoorDash may conduct studies to assess your Marketing Content or Campaigns and may use your name and logo to do so. DoorDash may use any Marketing Content for marketing purposes after applicable Campaigns have run.

2. PAYMENTS AND TAXES.

- 3. Merchant will pay all fees it incurs in connection with its use of Marketing Services (the “**Fees**”). Fees will be calculated based on DoorDash’s measurements and the billing criteria applicable to the Campaign. Merchant agrees that its payment of the applicable Fees and other applicable amounts will be made by deduction from amounts owed to Merchant by DoorDash in connection with other DoorDash offering..If DoorDash makes invoicing available as a payment method, Merchant will pay the applicable invoice within 30 days after receipt. Fees and other amounts are non-refundable (unless an insertion order expressly states otherwise) and exclusive of any applicable sales, use, value added, withholding, and other transaction related taxes, and Merchant will pay all such taxes levied or imposed by reason of the transactions hereunder, except for taxes based on DoorDash’s net income or related to DoorDash’s employees.
- 4. **CANCELLATION.** Either party may cancel a Campaign at any time. However, if you request to cancel after the Campaign has begun, you will be responsible for Fees that accrue after your cancellation request but before the applicable Marketing Content has been removed from Properties.

5. WARRANTIES AND DISCLAIMER.

- a. **Warranty.** You represent and warrant that: (i) you have all necessary rights (a) to use the Specifications and any other data you share, and to use and display the Marketing Content, in connection with your Campaigns, and (b) to perform your obligations, exercise your rights, and grant the licenses and authorizations granted to DoorDash under these Marketing Terms; (ii) all information and authorizations you provide are complete, correct and current; (iii) Marketing Content will at all times comply with Policies and applicable law; and (iv) you and all of your subcontractors, agents, and suppliers will at all times comply with all laws, regulations, and industry standards applicable to the performance of your obligations and exercise of your rights under these Marketing Terms and in connection with your use of the Marketing Services, including without limitation, all laws, regulations, and industry standards relating to advertising, privacy, data security, sweepstakes, or promotions.
- b. **Disclaimer.** EXCEPT AS EXPRESSLY PROVIDED HEREIN, AND TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, DOORDASH PROVIDES THE MARKETING SERVICES AND PROPERTIES “AS IS,” MAKES NO WARRANTY OF ANY KIND EXPRESS OR IMPLIED WITH REGARD TO THE MARKETING SERVICES OR PROPERTIES, AND DISCLAIMS ALL OTHER WARRANTIES AND CONDITIONS, AND EXPRESSLY DISCLAIMS THE WARRANTY OF MERCHANTABILITY AND WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE.

FURTHERMORE, TO THE FULLEST EXTENT PERMITTED BY LAW, DOORDASH SPECIFICALLY DISCLAIMS ALL WARRANTIES AND GUARANTEES REGARDING: (I) THE PERFORMANCE, QUALITY AND RESULTS OF CAMPAIGNS, INCLUDING AD CLICK RATES, CONVERSIONS, PACING AND ANY USER-GENERATED CONTENT THAT APPEARS ON THE DOORDASH PLATFORM, (II) THE ACCURACY OF THE SPECIFICATIONS (INCLUDING CAMPAIGN TARGETING), MARKETING SERVICES DATA, AND OTHER NON-PAYMENT-RELATED INFORMATION AND METRICS THAT DOORDASH PROVIDES IN CONNECTION WITH MARKETING SERVICES OR CAMPAIGNS (E.G., TRAFFIC, VIEWS, VISITORS, DOORDASH CUSTOMERS, DEMOGRAPHICS, AND BEHAVIORAL INFORMATION ABOUT DOORDASH CUSTOMERS), AND (III) THE PLACEMENT, CONTENT, PROMOTIONAL VALUE, QUALITY, TIMING, OR NUMBER OF AD IMPRESSIONS OR MERCHANT ORDERS THAT WILL RESULT FROM MERCHANT'S USE OF THE MARKETING SERVICES. DOORDASH SHALL NOT BE LIABLE FOR NON-PERFORMANCE DUE TO CAUSES BEYOND ITS REASONABLE CONTROL.

6. **INDEMNIFICATION.** In addition to any indemnification obligations in the Main Agreement, and subject to the same terms from the Main Agreement, Merchant will defend, indemnify and hold harmless DoorDash and the DoorDash Indemnified Parties from and against any and all claims, liabilities, damages, losses, costs, fees (including reasonable legal fees), and expenses relating to any third-party claims arising out of or related to Marketing Content, Campaigns, Specifications, or any breach of these Marketing Terms (including representations and warranties) by Merchant. "**DoorDash Indemnified Parties**" means any parties related to DoorDash that are entitled to indemnification under the indemnification provision of the Main Agreement.

7. **LIMITATION OF LIABILITY.** The limitations of liability between the parties are set forth in the Main Agreement.

8. **GENERAL.**

- a. **Subcontractors.** Nothing herein prevents DoorDash from using contractors, subcontractors, service providers, vendors, or other agents to perform its obligations (or a portion thereof) hereunder.
- b. **Force Majeure.** Except for payment obligations, if a Force Majeure Event prevents a Party from complying with any one or more obligations under these Marketing Terms, that inability to comply will not constitute breach. If a Force Majeure Event occurs, the affected Party shall promptly notify the other Party, its effect on performance, and how long the affected Party expects it to last. Thereafter, the affected Party shall update that information as reasonably necessary. If a Force Majeure Event occurs for longer than 30 days, then either Party may terminate these Marketing Terms. "**Force Majeure Event**" means, with respect to a Party, any event or circumstance, whether or not foreseeable, that was outside the control of that Party.
- c. **Order of Precedence.** In the event of a conflict between the terms of the Main Agreement and these Marketing Terms, these Marketing Terms will prevail.